

Neha W/O Arvind Kumar Jangid D/O Ashok ... vs State Of Rajasthan on 18 December, 2020

Author: Satish Kumar Sharma

Bench: Satish Kumar Sharma

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Criminal Miscellaneous (Petition) No. 6457/2020

1. Neha W/o Arvind Kumar Jangid D/o Ashok Kumar Jangid, Aged About 27 Years, R/o Vpo Sikandra Tehsil Sikrai District Dausa (Raj.) Presently Posted At Govt. Upper Primary School Bichhawadi (Bagoti) Panchayat Samiti Bheenmal District Jalore (Raj.)
2. Hemendra S/o Arvind Kumar Jangid, Aged About 3 Years, R/o Vpo Sikandra Tehsil Sikrai, Distt. Dausa Raj. Through Natural Guardian Mother Namely Neha.

----Petitioners

Versus

1. State Of Rajasthan, Through PP
2. The Commissioner Of Police, Commissionerate Jaipur (Raj.)
3. The Superintendent Of Police, Dausa Rajasthan
4. The Superintendent Of Police, Jalore (Raj.)
5. SHO, Police Station Sikandra Dausa (Raj.)
6. SHO, Police Station Bagoda Jalore (Raj.)
7. Arvind Kumar Jangid S/o Rameshwar Prasad Jangid, R/o Vpo Thikariya Tehsil Sikrai Police Station Manpur District Dausa (Raj.) Presently Residing At H. No. 238-B Bhumika Nagar Jaipur Kanota Jaipur City East Jaipur (Raj.)
8. Rameshwar Prasad S/o Shyojiram Jangid, R/o Vpo Thikariya Tehsil Sikrai Police Station Manpur District Dausa (Raj.) Presently Residing At H. No. 238-B Bhumika Nagar Jaipur Kanota Jaipur City East Jaipur (Raj.)
9. Rajkumar Jangid S/o Rameshwar Prasad Jangid, R/o Vpo Thikariya Tehsil Sikrai Police Station Manpur District Dausa (Raj.) Presently Residing At H. No. 238-B Bhumika Nagar Jaipur Kanota Jaipur City East Jaipur (Raj.)
10. Ganga Devi W/o Rameshwar Prasad Jangid, R/o Vpo Thikariya Tehsil Sikrai Police Station Manpur District Dausa (Raj.) Presently Residing At H. No. 238-B Bhumika Nagar Jaipur Kanota Jaipur City East Jaipur (Raj.)
11. Neeraj Kumar S/o Rameshwar Prasad Jangid, R/o Vpo Thikariya Tehsil Sikrai Police Station Manpur District

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Dausa (Raj.) Presently Residing At H. No. 238-B Bhumika
Nagar Jaipur Kanota Jaipur City East Jaipur (Raj.)

----Respondents

For Petitioner(s) : Mr. Anil Sharma, through VC For Respondent(s) : Mr. F. R. Meena, PP HON'BLE
MR. JUSTICE SATISH KUMAR SHARMA Order 18/12/2020

1. This Petition has been filed under Section 482 Cr.P.C. for protection of life and personal liberty of the petitioners.
2. Heard learned counsel for the petitioners and learned Public Prosecutor and perused the material made available on record.
3. Learned counsel for the petitioners submits that the Petitioner No.1 had married with Respondent No. 7 and a male child, namely, Hemendra was born in this wedlock. But the private respondents including her husband i.e. Respondent No. 7 tortured her for dowry and assaulted her with the intention to kill her. The petitioner No. 1 was compelled to lodge FIR No. 188/2019 at Police Station Mahila Thana, Jaipur City East, Jaipur for the offences under Section 498-A, 406, 323 and 354 of IPC and section 4 of Dowry Prohibition Act. Chargesheet has been filed in this matter. The Respondent No. 7 also filed petitions under Guardianship Act and Hindu Marriage Act against the petitioners. The private respondents are regularly threatening the petitioners. Being their life and liberty in danger, protection may be granted to the petitioners.
4. Learned Public Prosecutor submits that appropriate directions may be issued.

(3 of 3) [CRLMP-6457/2020]

5. In view of the order intended to be passed in the petition, being non-prejudicial to the private respondents, no notices are required against them.
6. Heard. Considered.
7. Article 21 of the Constitution of India guarantees that the right to life and personal liberty has to be protected except according to procedure established by law. Further, as per Section 29 of Rajasthan Police Act, 2007 every police officer is duty bound to protect the life and liberty of the citizens. Therefore, having regard to the above submissions but without expressing any opinion on the genuineness or correctness of the allegations made by the petitioners, this petition is disposed of with the direction that learned counsel for the petitioners shall send a copy of the petition along with its annexures to the Station House Officer of the concerned Police Station through e-mail, and on receipt of the same, the Station House Officer concerned shall treat it as a complaint and after due enquiry, he shall take necessary preventive measures and other steps to ensure safety and security of the petitioners in accordance with law.

8. However, as a precautionary note, it is made clear that this order shall not come in the way of civil/criminal case, if any, and such case would take its own course as per law.

(SATISH KUMAR SHARMA),J SAHIL SONI /106 Powered by TCPDF (www.tcpdf.org)